

Who Gets the House If You Break Up?

Your nonmarital agreement should spell out what will happen if both of you want to keep the house when you break up. How will you decide who goes and who stays? Does the person who gets the house buy out the person who's leaving? How is the buyout price calculated? Is it half the equity in the house, or is an amount deducted equal to the realtor fees that would have been paid if the house had been sold? If one of you contributed more to the purchase of the house than the other, your nonmarital agreement should spell out how this will be compensated if you break up.